

24NWCV01825 24NWCV01825

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Case Number: 24NWCV01825 Hearing Date: August 6, 2026 Dept: C

RELOVA v. GONZALEZ, et al.

CASE NO.: 24NWCV01825

HEARING: 8/6/26 @ 9:30 AM

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TENTATIVE ORDER

Defendants,

ZEFERINO GONZALEZ and NEXGEN TRANSPORTATION, INC's Unopposed Motion to Compel

Compliance to Deposition Subpoena for Production of Business Records is GRANTED. Non-party Petrus Backhoe Service, Inc. is

ordered to respond by August 31, 2026.

Moving Party to give NOTICE.

Defendants ZEFERINO GONZALEZ and NEXGEN

TRANSPORTATION, INC (Defendants) move for an order compelling compliance of Defendants'

Subpoenas for Business Records as to employment records from Petrus Backhoe

Service, Inc. (Petrus) pursuant to Code of Civ. Proc., § 1987.1.

Background

Plaintiff

alleges personal injuries caused by a motor vehicle Defendants negligently, carelessly, recklessly, unskillfully, unlawfully, wantonly, and wrongfully,

entrusted, permitted, managed, serviced, repaired, inspected, maintained, operated, controlled, and drove. (First Amended Complaint, PLD-PI-001(2), GN-1.)

Legal Standard

“If a subpoena requires the attendance of a witness or the production of books, documents, electronically stored information, or other things before a court, or at the trial of an issue therein, or at the taking of a deposition, the court, upon motion reasonably made by any person described in subdivision (b), or upon the court's own motion after giving counsel notice and an opportunity to be heard, may make an order quashing the subpoena entirely, modifying it, or directing compliance with it upon those terms or conditions as the court shall declare, including protective orders. In addition, the court may make any other order as may be appropriate to protect the person from unreasonable or oppressive demands, including unreasonable violations of the right of privacy of the person.” (CCP § 1987.1(a).)

“A deposition subpoena that commands only the production of business records for copying shall designate the business records to be produced either by specifically describing each individual item or by reasonably particularizing each category of item” (CCP § 2020.410 (a).)

Current discovery standards hold that, “any party may obtain discovery regarding any matter, not privileged, that is relevant to the subject matter involved in the pending action . . . if the matter either is itself admissible in evidence or appears reasonably calculated to lead to the discovery of admissible evidence.” (Board of Registered Nursing v. Superior Court (2021) 59 Cal.App.5th 1011, 1039.)

Discussion

On May 1, 2025, Plaintiff served responses to Defendants' Form Interrogatories. (Schmid Decl. ¶ 3.) In response to interrogatory 2.6 Plaintiff identified Petrus Backhoe Service, Inc. as his previous employer. Additionally in response to interrogatories 8.1-8.8 Plaintiff alleges a loss of earning claim due to his purported injuries. (Schmid Decl. ¶ 4.)

Defendants served their subpoena for employment records through Compex on October 15, 2025. (Schmid Decl. ¶ 5.) Plaintiff objected to this and other subpoenas on November 6, 2025. (Schmid Decl. ¶ 6.) On November 13, 2025, Defendants prepared and served their meet and confer letter in an attempt to informally resolve the issue. (Schmid Decl. ¶ 7.)

On February 13, 2026, Defendants reissued their subpoena for employment records through Compex. (Schmid Decl. ¶ 8.) Documents were to be produced to Compex by March 18, 2026. (Schmid Decl. ¶ 9.)

On March 24, 2026, Compex received an objection by non-party to production of records signed by Kenneth Scott Petrus. (Schmid Decl. ¶ 10.) On March 31, 2026, a representative of Compex, Anna Salgado notified Petrus via email that Plaintiff's legal representative was notified of these subpoenas and requested Petrus to forward the records. (Schmid Decl. ¶ 11.) On April 9, 2026, Compex sent a demand letter to Petrus requesting that they produce the records (Schmid Decl. ¶ 12.) On May 6, 2026, Compex sent a second demand letter to Petrus requesting again that they produce the records. Additionally, Compex advised Petrus that Defendants intend to file a Motion to Compel. (Schmid Decl. ¶ 13.) Petrus did not respond to any of Compex' demands as indicated in their due diligence report. (Schmid Decl. ¶ 14.)

The Court finds the employment records from Petrus are subject to discovery under section 2017.010 of the Code of Civil Procedure. In civil litigation, discovery may be obtained from a nonparty only through a "deposition subpoena." (See Code Civ. Proc., § 2020.010, subd. (b).) A business records subpoena directs the nonparty's custodian of records (or other qualified person) to deliver the requested documents (in person, by messenger, or by mail) to the "deposition officer" specified in the subpoena. (Code Civ. Proc., § 2020.430, subd. (a).) Plaintiff has alleged damages related to lost wages and loss of employment in this matter; therefore, Plaintiff's employment records are relevant in this case. Moreover, Plaintiff has not objected to the reissued subpoena propounded on Petrus by Defendant. (Schmid Decl. ¶ 8 and ¶ 11.)

Accordingly, Defendants' Motion to Compel Compliance to Deposition Subpoena for Production of Business Records is GRANTED. Non-party Petrus Backhoe Service, Inc. is ordered to respond by August 31, 2026.